

COMMITTEE ON FEDERALISM AND FAMILY LAW
SENATE AMENDMENTS TO H.B. 2594
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Section 16-153, Arizona Revised Statutes, is amended
3 to read:

4 16-153. Voter registration; confidentiality; definitions

5 A. Eligible persons, and any other registered voter who resides at
6 the same residence address as the eligible person, may request that the
7 general public be prohibited from accessing the eligible person's
8 identifying information, including any of the following:

9 1. That person's documents and voting precinct number contained in
10 that person's voter registration record.

11 2. If the person is a public official, the address of a property
12 held in trust by the public official.

13 B. Eligible persons may request this action by filing an affidavit
14 that states all of the following on an application form developed by the
15 administrative office of the courts in agreement with an association of
16 counties and an organization of peace officers:

17 1. The person's full legal name, residential address and date of
18 birth.

19 2. Unless the person is the spouse of a peace officer or the spouse
20 or minor child of a deceased peace officer or the person is a former
21 public official or former judge, the position the person currently holds
22 and a description of the person's duties, except that an eligible person
23 who is protected under an order of protection or injunction against
24 harassment shall instead attach a copy of the order of protection or
25 injunction against harassment.

26 3. The reasons for reasonably believing that the person's life or
27 safety or that of another person is in danger and that sealing the
28 identifying information and voting precinct number of the person's voting
29 record will serve to reduce the danger.

1 C. The affidavit shall be filed with the presiding judge of the
2 superior court in the county in which the affiant resides. To prevent
3 multiple filings, an eligible person who is a peace officer, prosecutor,
4 public defender, code enforcement officer, corrections or detention
5 officer, corrections support staff member or law enforcement support staff
6 member shall deliver the affidavit to the peace officer's commanding
7 officer, or to the head of the prosecuting, public defender, code
8 enforcement, law enforcement, corrections or detention agency, as
9 applicable, or that person's designee, who shall file the affidavits at
10 one time. In the absence of an affidavit that contains a request for
11 immediate action and is supported by facts justifying an earlier
12 presentation, the commanding officer, or the head of the prosecuting,
13 public defender, code enforcement, law enforcement, corrections or
14 detention agency, as applicable, or that person's designee, shall not file
15 affidavits more often than quarterly.

16 D. On receipt of an affidavit or affidavits, the presiding judge of
17 the superior court shall file with the clerk of the superior court a
18 petition on behalf of all requesting affiants. The petition shall have
19 attached each affidavit presented. In the absence of an affidavit that
20 contains a request for immediate action and that is supported by facts
21 justifying an earlier consideration, the presiding judge may accumulate
22 affidavits and file a petition at the end of each quarter.

23 E. The presiding judge of the superior court shall review the
24 petition and each attached affidavit to determine whether the action
25 requested by each affiant should be granted. The presiding judge of the
26 superior court shall order the sealing for five years of the information
27 contained in the voter record of the affiant and, on request, any other
28 registered voter who resides at the same residence address if the
29 presiding judge concludes that this action will reduce a danger to the
30 life or safety of the affiant.

31 F. The recorder shall remove the restrictions on all voter records
32 submitted pursuant to subsection E of this section by January 5 in the
33 year after the court order expires. The county recorder shall send by
34 mail one notice to either the health professional, election officer,
35 public official, former public official, peace officer, spouse of a peace
36 officer, spouse or minor child of a deceased peace officer, public
37 defender, prosecutor, code enforcement officer, corrections or detention
38 officer, corrections support staff member, law enforcement support staff
39 member, employee of the department of child safety or employee of adult
40 protective services who has direct contact with families in the course of
41 employment or the employing agency of the peace officer, public defender,
42 prosecutor, code enforcement officer, corrections or detention officer,
43 corrections support staff member or law enforcement support staff member
44 who was granted an order pursuant to this section of the order's
45 expiration date at least six months before the January 5 removal date. If
46 the notice is sent to the employing agency, the employing agency shall
47 immediately notify the person who was granted the order of the upcoming

1 expiration date. The county recorder may coordinate with the county
2 assessor and county treasurer to prevent multiple notices from being sent
3 to the same person.

4 G. On entry of the court order, the clerk of the superior court
5 shall file the court order with the county recorder. On receipt of the
6 court order the county recorder shall seal the voter registration of the
7 persons listed in the court order not later than one hundred twenty days
8 from the date of receipt of the court order. To include a subsequent
9 voter registration in the court order, a person listed in the court order
10 shall present to the county recorder at the time of registration a
11 certified copy of the court order or shall provide the county recorder the
12 recording number of the court order. The information in the registration
13 shall not be disclosed and is not a public record.

14 H. If the court denies an affiant's requested sealing of the voter
15 registration record, the affiant may request a court hearing. The hearing
16 shall be conducted by the court where the petition was filed.

17 I. On motion to the court, if the presiding judge of the superior
18 court concludes that a voter registration record has been sealed in error
19 or that the cause for the original affidavit no longer exists, the
20 presiding judge may vacate the court order prohibiting public access to
21 the voter registration record.

22 J. On request by a person who is protected under an order of
23 protection or injunction against harassment and presentation of an order
24 of protection issued pursuant to section 13-3602, an injunction against
25 harassment issued pursuant to section 12-1809 or an order of protection or
26 injunction against harassment issued by a court in another state or a
27 program participant in the address confidentiality program pursuant to
28 title 41, chapter 1, article 3, the county recorder shall seal the voter
29 registration record of the person who is protected and, on request, any
30 other registered voter who resides at the residence address of the
31 protected person. The record shall be sealed not later than one hundred
32 twenty days from the date of receipt of the court order. The information
33 in the registration shall not be disclosed and is not a public
34 record. [ON THE RENEWAL OF THE CERTIFICATION OF A PROGRAM PARTICIPANT IN
35 THE ADDRESS CONFIDENTIALITY PROGRAM PURSUANT TO TITLE 41, CHAPTER 1,
36 ARTICLE 3, THE COUNTY RECORDER SHALL CONTINUE OR RENEW THE SEALING OF THE
37 VOTER REGISTRATION RECORD OF THE PERSON WHO IS PROTECTED AND ON REQUEST
38 ANY HOUSEHOLD RESIDENTS THAT WERE CERTIFIED AS PROGRAM PARTICIPANTS
39 PURSUANT TO SECTION 41-163, SUBSECTION D THAT ARE REGISTERED VOTERS. THE
40 VOTER REGISTRATION RECORD OF A PROGRAM PARTICIPANT IN THE ADDRESS
41 CONFIDENTIALITY PROGRAM PURSUANT TO TITLE 41, CHAPTER 1, ARTICLE 3 SHALL
42 REMAIN SEALED AFTER THE DEATH OF THE PROGRAM PARTICIPANT.]

43 K. For the purposes of this section:

44 1. "Code enforcement officer" means a person who is employed by a
45 state or local government and whose duties include performing field
46 inspections of buildings, structures or property to ensure compliance with
47 and enforce national, state and local laws, ordinances and codes.

1 2. "Commissioner" means a commissioner of the superior court or
2 municipal court.

3 3. "Corrections support staff member" means an adult or juvenile
4 corrections employee who has direct contact with inmates.

5 4. "Election officer" means a state, county or municipal employee
6 who holds an election officer's certificate issued pursuant to section
7 16-407.

8 5. "Eligible person" means a health professional, election officer,
9 public official, former public official, peace officer, spouse of a peace
10 officer, spouse or minor child of a deceased peace officer, justice,
11 judge, commissioner, hearing officer, public defender, prosecutor, member
12 of the commission on appellate court appointments, code enforcement
13 officer, adult or juvenile corrections officer, corrections support staff
14 member, probation officer, member of the board of executive clemency, law
15 enforcement support staff member, employee of the department of child
16 safety or employee of adult protective services who has direct contact
17 with families in the course of employment, national guard member who is
18 acting in support of a law enforcement agency, person who is protected
19 under an order of protection or injunction against harassment or
20 firefighter who is assigned to the Arizona counter terrorism information
21 center in the department of public safety.

22 6. "Former public official" means a person who was duly elected or
23 appointed to Congress, the legislature or a statewide office, who ceased
24 serving in that capacity and who was the victim of a dangerous offense as
25 defined in section 13-105 while in office.

26 7. "Health professional" means an individual who is licensed
27 pursuant to title 32, chapter 13, 15, 17, 19.1, 25 or 33.

28 8. "Hearing officer" means a hearing officer who is appointed
29 pursuant to section 28-1553.

30 9. "Judge" means a judge or former judge of the United States
31 district court, the United States court of appeals, the United States
32 magistrate court, the United States bankruptcy court, the United States
33 immigration court, the Arizona court of appeals, the superior court or a
34 municipal court.

35 10. "Justice" means a justice of the United States or Arizona
36 supreme court or a justice of the peace.

37 11. "Law enforcement support staff member" means a person who
38 serves in the role of an investigator or prosecutorial assistant in an
39 agency that investigates or prosecutes crimes, who is integral to the
40 investigation or prosecution of crimes and whose name or identity will be
41 revealed in the course of public proceedings.

42 12. "Peace officer":

43 (a) Has the same meaning prescribed in section 1-215.

44 (b) Includes a federal law enforcement officer or agent who resides
45 in this state and who has the power to make arrests pursuant to federal
46 law.

1 13. "Prosecutor" means a current or former United States attorney,
2 county attorney, municipal prosecutor or attorney general and includes a
3 current or former assistant or deputy United States attorney, county
4 attorney, municipal prosecutor or attorney general.

5 14. "Public defender" means a federal public defender, county
6 public defender, county legal defender or county contract indigent defense
7 counsel and includes an assistant or deputy federal public defender,
8 county public defender or county legal defender.

9 15. "Public official" means a person who is duly elected or
10 appointed to Congress, the legislature, a statewide office or a county,
11 city or town office.>>

12 Sec. 2. Section 25-403.06, Arizona Revised Statutes, is amended to
13 read:

14 25-403.06. Parental access to prescription medication and
15 records; address confidentiality program;
16 applicability

17 A. Unless otherwise provided by court order or law, on reasonable
18 request both parents are entitled to have equal access to prescription
19 medication, documents and other information concerning the child's
20 education and physical, mental, moral and emotional health, including
21 medical, school, police, court and other records, directly from the
22 custodian of the records or from the other parent.

23 B. A person who does not comply with a reasonable request shall
24 reimburse the requesting parent for court costs and attorney fees incurred
25 by that parent to force compliance with this section.

26 C. A parent with joint legal custody shall not designate one
27 pharmacy in a single location as the only source of the child's
28 prescription medication without THE agreement of the other parent.

29 D. A parent who attempts to restrict the release of documents or
30 information by the custodian or attempts to withhold prescription
31 medication without a prior court order is subject to appropriate legal
32 sanctions.

33 E. IF A PARENT HAS SOLE LEGAL DECISION-MAKING AUTHORITY AND THAT
34 PARENT IS A PARTICIPANT IN THE ADDRESS CONFIDENTIALITY PROGRAM ESTABLISHED
35 PURSUANT TO SECTION 41-162 BECAUSE OF THE ACTIONS OF THE OTHER PARENT,
36 SUBSECTION A OF THIS SECTION DOES NOT APPLY TO THE PARENT WHO DOES NOT
37 HAVE SOLE LEGAL DECISION-MAKING AUTHORITY. THE PARENT WITH LEGAL
38 DECISION-MAKING AUTHORITY WHO IS A PARTICIPANT IN THE ADDRESS
39 CONFIDENTIALITY PROGRAM MAY PROVIDE THE INFORMATION REQUIRED PURSUANT TO
40 THIS SUBSECTION BY EMAIL, CELL PHONE APPLICATION OR REGULAR MAIL.

41 Sec. 3. Title 25, chapter 11, article 1, Arizona Revised Statutes,
42 is amended by adding section 25-1502, to read:

43 25-1502. Participants in address confidentiality program; use
44 of substitute address; applicability; violation;
45 classification

46 A. IN ANY MATTER BROUGHT PURSUANT TO THIS TITLE, IF A PARTY TO THE
47 MATTER IS A PARTICIPANT IN THE ADDRESS CONFIDENTIALITY PROGRAM ESTABLISHED

1 PURSUANT TO SECTION 41-162, THE COURT SHALL USE THE PARTY'S ADDRESS
2 CONFIDENTIALITY PROGRAM SUBSTITUTE ADDRESS IN ALL FILINGS, NOTICES AND
3 COMMUNICATIONS RELATING TO THE MATTER.

4 B. AN ADDRESS CONFIDENTIALITY PROGRAM PARTICIPANT'S RESIDENCE
5 ADDRESS SHALL BE SEALED IN ALL COURT RECORDS AND MAY NOT BE DISCLOSED TO
6 ANY PARTY OR ATTORNEY.

7 C. THE PARTY WHO IS A PARTICIPANT IN THE ADDRESS CONFIDENTIALITY
8 PROGRAM MAY RECEIVE SERVICE AS PRESCRIBED IN SECTION 41-162, SUBSECTION C.

9 D. THE COURT MAY NOT CONSIDER A PARTY'S PARTICIPATION IN THE
10 ADDRESS CONFIDENTIALITY PROGRAM AS EVIDENCE OF ANY OF THE FOLLOWING:

11 1. PARENTAL ALIENATION.

12 2. FAILURE TO COOPERATE WITH THE OTHER PARTY.

13 3. INSTABILITY.

14 E. ANY PERSON WHO INTENTIONALLY OR KNOWINGLY OBTAINS OR DISCLOSES
15 INFORMATION IN VIOLATION OF THIS SECTION OR SECTION 41-165 IS GUILTY OF A
16 CLASS 1 MISDEMEANOR. ANY PERSON WHO INTENTIONALLY OR KNOWINGLY OBTAINS OR
17 DISCLOSES INFORMATION IN VIOLATION OF THIS SECTION OR SECTION 41-165 FOR
18 THE PURPOSE OF HARASSMENT, STALKING OR DOMESTIC VIOLENCE AGAINST A PARTY
19 TO A MATTER THAT IS BROUGHT PURSUANT TO THIS TITLE IS GUILTY OF A CLASS 6
20 FELONY.

21 Sec. 4. Section 41-162, Arizona Revised Statutes, is amended to
22 read:

23 41-162. Address confidentiality program; duties of secretary
24 of state; substitute address; application
25 assistants

26 A. ~~On or before December 31, 2012,~~ The secretary of state shall
27 establish the address confidentiality program to allow persons who have
28 been subjected to domestic violence offenses, sexual offenses or stalking
29 to keep their residence addresses confidential and not accessible to the
30 general public. Participants in the program shall receive a substitute
31 address that becomes the participant's lawful address of record.

32 B. The secretary of state shall:

33 1. Designate a substitute address for a program participant that is
34 used by state and local government entities as set forth in this section.

35 2. Receive mail sent to a program participant at a substitute
36 address and forward the mail to the program participant as set forth in
37 paragraph 3 of this subsection.

38 3. Receive first-class, certified or registered mail on behalf of a
39 program participant and forward the mail to the program participant for no
40 charge. The secretary of state may arrange to receive and forward other
41 classes or kinds of mail at the program participant's expense. The
42 secretary of state is not required to track or otherwise maintain records
43 of any mail received on behalf of a program participant unless the mail is
44 certified or registered mail.

45 C. Notwithstanding any other law and except as provided by court
46 rule, a program participant may be served by registered mail or by
47 certified mail, return receipt requested, addressed to the program

1 participant at the program participant's substitute address with any
2 process, notice or demand required or allowed by law to be served on the
3 program participant. This subsection does not prescribe the only means,
4 or necessarily the required means, of serving a program participant in
5 this state.

6 D. A COURT MAY NOT ORDER THE DISCLOSURE OF A PROGRAM PARTICIPANT'S
7 RESIDENCE ADDRESS OR LOCATION INFORMATION UNLESS THE COURT FINDS, BY CLEAR
8 AND CONVINCING EVIDENCE, THAT DISCLOSURE OF A PROGRAM PARTICIPANT'S
9 RESIDENCE ADDRESS IS ESSENTIAL TO A COMPELLING STATE INTEREST AND THAT NO
10 REASONABLE ALTERNATIVE EXISTS TO ACCOMPLISH THAT PURPOSE WITHOUT THE
11 DISCLOSURE OF THE PROGRAM PARTICIPANT'S RESIDENCE ADDRESS.

12 ~~D.~~ E. The secretary of state may designate as an application
13 assistant any person who:

14 1. Provides counseling, referral or other services to victims of
15 domestic violence, a sexual offense or stalking.

16 2. Completes any training and registration process required by the
17 secretary of state.

18 ~~E.~~ F. Any assistance and counseling rendered by the secretary of
19 state or an application assistant to an applicant related to this section
20 is not legal advice.

21 Sec. 5. Section 41-165, Arizona Revised Statutes, is amended to
22 read:

23 41-165. Disclosure of actual address prohibited; exceptions;
24 violations; classification

25 A. The secretary of state shall not disclose any address or
26 telephone number of a program participant other than the substitute
27 address designated by the secretary of state, except under any of the
28 following circumstances:

29 1. The information is required by direction of a court order.
30 ~~, except that~~ Any person to whom a program participant's address or
31 telephone number ~~has been~~ IS disclosed PURSUANT TO THIS PARAGRAPH shall
32 not disclose the address or telephone number to any other person unless
33 ~~permitted~~ ALLOWED to do so by order of the court or as otherwise provided
34 by law.

35 2. The secretary of state grants a request by a state or local
36 government entity pursuant to section 41-167, subsection D.

37 B. The secretary of state shall provide immediate notification of
38 disclosure to a program participant if disclosure is made pursuant to
39 subsection A of this section.

40 C. If, at the time of application, an applicant or an individual
41 identified pursuant to section 41-163, subsection C, paragraph 10 is
42 subject to a court order related to dissolution of marriage proceedings,
43 child support or the allocation of parental responsibilities or parenting
44 time, the secretary of state shall notify the court that issued the order
45 of the certification of the program participant in the address
46 confidentiality program and the substitute address designated by the
47 secretary of state. If, at the time of application, an applicant or an

1 individual identified pursuant to section 41-163, subsection C, paragraph
2 10 is involved in a court action related to dissolution of marriage
3 proceedings, child support or the allocation of parental responsibilities
4 or parenting time, the secretary of state shall notify the court having
5 jurisdiction over the action of the certification of the applicant in the
6 address confidentiality program and the substitute address designated by
7 the secretary of state.

8 D. A person shall not intentionally or knowingly obtain OR ATTEMPT
9 TO OBTAIN a program participant's actual address or telephone number,
10 WHETHER from the secretary of state or a state or local government entity,
11 OR BY ANY OTHER MEANS, knowing that the person is not authorized to obtain
12 the address information.

13 E. An employee of the secretary of state or a state or local
14 government entity shall not intentionally or knowingly disclose a program
15 participant's actual address or telephone number unless the disclosure is
16 permissible by law. This subsection ~~only~~ applies ONLY if an employee
17 obtains a program participant's actual address or telephone number during
18 the course of the employee's official duties and, at the time of
19 disclosure, the employee has specific knowledge that the actual address or
20 telephone number disclosed belongs to a program participant.

21 F. Any person who intentionally or knowingly obtains OR ATTEMPTS TO
22 OBTAIN or discloses information in violation of this section is guilty of
23 a class 1 misdemeanor. ANY PERSON WHO INTENTIONALLY OR KNOWINGLY OBTAINS
24 OR ATTEMPTS TO OBTAIN OR DISCLOSES INFORMATION IN VIOLATION OF THIS
25 SECTION FOR THE PURPOSE OF HARASSMENT, STALKING OR DOMESTIC VIOLENCE
26 AGAINST A PARTY TO A MATTER THAT IS BROUGHT PURSUANT TO TITLE 25 IS GUILTY
27 OF A CLASS 6 FELONY. IF THE CONDUCT INVOLVES SURVEILLANCE OF A MINOR, USE
28 OF A THIRD PARTY OR REPEATED ATTEMPTS, THE PERSON IS GUILTY OF A CLASS 5
29 FELONY.

30 <<Sec. 6. Section 41-166, Arizona Revised Statutes, is amended to
31 read:

32 41-166. Address use by state or local government entities

33 A. The program participant, and not the secretary of state, is
34 responsible for requesting that a state or local government entity use the
35 program participant's substitute address as the program participant's
36 residential, work or school address for all purposes for which the state
37 or local government entity requires or requests the residential, work or
38 school address.

39 B. Except as otherwise provided in this section or unless the
40 secretary of state grants a state or local government entity's request for
41 disclosure pursuant to section 41-167, if a program participant submits a
42 current and valid address confidentiality program authorization card to
43 the state or local government entity, the state or local government entity
44 shall accept the substitute address designation on the card as the program
45 participant's address for use as the program participant's residential,
46 work or school address when creating a new public record. The substitute
47 address given to the state or local government entity is considered the

1 last known address for the program participant used by the state or local
2 government entity until the time that the state or local government entity
3 receives notification pursuant to section 41-164. The state or local
4 government entity may make a photocopy of the card for the records of the
5 state or local government entity and shall immediately return the card to
6 the program participant.

7 C. Except as otherwise provided in this section or by order of the
8 court, if a program participant submits a current and valid address
9 confidentiality program authorization card to the court, the court shall
10 accept the substitute address designation on the card as the program
11 participant's address for use as the program participant's residential,
12 work or school address. The substitute address given to the court is
13 considered the last known address for the program participant used by the
14 court until the time that the court receives notification pursuant to
15 section 41-164. The court may make a photocopy of the card for the court
16 file and shall return the card to the program participant.

17 D. When a person with an existing voter registration record becomes
18 a program participant, the secretary of state shall secure the
19 participant's voter registration record and notify the appropriate county
20 recorder of the participant's secured status, current residence address
21 and substitute address for the county recorder to revise the participant's
22 voter registration record so that the participant's address can be kept
23 confidential in the same manner as prescribed by section 16-153. A
24 program participant who is not already registered to vote may register to
25 vote using the substitute address and must provide the election official
26 with the participant's actual residence address for precinct designation
27 purposes. If the participant registers to vote other than online or at a
28 driver license examination facility, the participant shall present a
29 completed voter registration form with the participant's substitute
30 address and address confidentiality program card to the appropriate
31 election official. [ON THE RENEWAL OF THE CERTIFICATION OF A PROGRAM
32 PARTICIPANT IN THE ADDRESS CONFIDENTIALITY PROGRAM, THE COUNTY RECORDER
33 SHALL CONTINUE OR RENEW THE SEALING OF THE VOTER REGISTRATION RECORD OF
34 THE PERSON WHO IS PROTECTED AND, ON REQUEST, ANY OTHER REGISTERED VOTER
35 WHO RESIDES AT THE RESIDENCE ADDRESS OF THE PROTECTED PERSON. THE VOTER
36 REGISTRATION RECORD OF A PROGRAM PARTICIPANT IN THE ADDRESS
37 CONFIDENTIALITY PROGRAM SHALL REMAIN SEALED AFTER THE DEATH OF THE PROGRAM
38 PARTICIPANT.]

39 E. A designated election official shall use the actual address of a
40 program participant for precinct designation and all official
41 election-related purposes and shall keep the program participant's actual
42 address confidential from the public. The election official shall use the
43 substitute address for all correspondence and mailings placed in the
44 United States mail. The substitute address shall not be used as an actual
45 residence address for voter registration.

1 F. A state or local government entity's access to a program
2 participant's voter registration shall be governed by the disclosure
3 process set forth in section 41-167.

4 G. A program participant who completes an application to register
5 to vote at a driver license examination facility while receiving a driver
6 license or an identification card is required to have the program
7 participant's actual address on the driver license or identification card.
8 A program participant whose driver license has the substitute address may
9 register to vote, if otherwise eligible, pursuant to subsection E of this
10 section.

11 H. The substitute address shall not be used for purposes of
12 listing, appraising or assessing property taxes and collecting property
13 taxes. If a program participant would like to keep records maintained by
14 the county assessor and county treasurer confidential, the program
15 participant shall comply with section 11-484.

16 I. If a program participant is required by law to swear or affirm
17 to the program participant's address, the program participant may use the
18 participant's substitute address.

19 J. The substitute address shall not be used for purposes of
20 assessing any taxes or fees on a motor vehicle or for titling or
21 registering a motor vehicle. Notwithstanding any law to the contrary, any
22 record that includes a program participant's actual address pursuant to
23 this subsection shall be confidential and not available for inspection by
24 anyone other than the program participant.

25 K. The substitute address shall not be used on any document related
26 to real property recorded with a recorder. If a program participant would
27 like to keep real property records confidential, the program participant
28 shall comply with section 11-483.

29 L. A public school shall accept the substitute address as the
30 address of record and shall verify student enrollment eligibility through
31 the secretary of state. The secretary of state shall facilitate the
32 transfer of student records from one school to another.

33 M. Except as otherwise provided in this section, a program
34 participant's actual address and telephone number maintained by a state or
35 local government entity or disclosed by the secretary of state is not a
36 public record that is subject to inspection. This subsection shall not
37 apply to the following:

38 1. Any public record created more than ninety days before the date
39 that the program participant applied to be certified in the program.

40 2. A program participant who voluntarily requests that a state or
41 local government entity use the participant's actual address or
42 voluntarily gives the actual address to the state or local government
43 entity.

44 N. For any public record created within ninety days before the date
45 that a program participant applied to be certified in the program, a state
46 or local government entity shall redact the actual address from a public
47 record or change the actual address to the substitute address in the

Senate Amendments to H.B. 2594

1 public record, if a program participant who presents a current and valid
2 program authorization card requests the entity that maintains the public
3 record to use the substitute address instead of the actual address on the
4 public record.>>

5

6 Enroll and engross to conform

7 Amend title to conform

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